W012570-041926 - California Public Records Request

Message History (3)

On 4/28/2026 2:57:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012570-041926
Body:
RE: PUBLIC RECORDS REQUEST of April 19, 2026, **Reference # W012570-041926**

Dear Brian C,

The City received the following records request from you on April 19, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context: SMPD's Flock transparency portal listed University of the Pacific ("UOP") among organizations with access to SMPD ALPR data between at least February 18, 2026 and March 11, 2026. UOP is a private institution not subject to CPRA (confirmed by UOP's Chief of Police in writing).

Scope of records. This request reaches records held by Flock Safety as SMPD's agent or contractor, or otherwise accessible to SMPD through its Flock account. Such records are "writings ... prepared, owned, used, or retained" by SMPD within the meaning of Gov. Code § 7920.530 and are subject to CPRA regardless of which server they physically reside on. Three SMPD-sourced instruments confirm this directly:

1. SMPD's Flock Master Services Agreement, § 4.1 — provides that SMPD retains ownership of the data processed by Flock on SMPD's behalf. (Responsive-See attached)

2. SMPD Policy 463 (published Dec 12, 2025) — § 463.2 assigns "ALPR data retention and access" to the Field Operations Captain; § 463.5 makes the Field Operations Captain "responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data" and refers to "ALPR information gathered and retained by this Department."

3. SMPD SOP 205 (published Nov 10, 2025), § 205.5.1 — Flock ALPR data "is held in the server based on our own retention policy," and end-user and operator audit records "maintained by Amazon Web Services" (for Flock), Verio (for Vigilant), PIPs, or NCRIC are "available for review and audit by SMPD." The audit fields SOP 205 enumerates — end-user sign-on information, access dates and times, search-term entry, case-number justifications, and data-to-justification linkages — match the fields responsive to Item 2 of this request.

Together, these establish that the requested records are SMPD records within the meaning of Gov. Code § 7920.530.

Records requested — each item is limited to records or information exchanged between SMPD and UOP during the sharing period, whether disclosed by SMPD to UOP (a non-public institution), provided to UOP by Flock Safety on SMPD's behalf, or provided by UOP to SMPD:

1. ALPR data SMPD disclosed to UOP — plate reads, detections, hotlist hit notifications, query results, or any other ALPR information (as defined by Civil Code § 1798.90.5(c)) that SMPD transmitted to UOP or returned to UOP through the Flock platform, including any bulk exports, canned reports, data feeds, or files provided to UOP personnel. (Responsive-See attached)

2. Flock platform audit-log entries memorializing UOP's access to SMPD data and SMPD's corresponding disclosures — whether held by SMPD directly or by Flock Safety on SMPD's behalf — including:
a. search queries UOP user accounts executed against SMPD data;
b. plate reads or results returned to UOP users in response to those queries;
c. timestamps for each query and response; and
d. the UOP user account identifiers associated with each query.

(Responsive-The attached document shows what we agreed to share with University of Pacific during that time. For items a. through d., there are no records indicating University of Pacific conducted any searches of our cameras. An audit was conducted to confirm this and yielded no responsive records.)

3. Any documentation SMPD or Flock provided to UOP describing the scope of UOP's access to SMPD ALPR data — for example, camera lists, coverage maps, retention-window notices, or hotlist/alert-rule descriptions made available to UOP. (Responsive-See attached)

4. The memorandum of understanding, sharing agreement, data-use agreement, or equivalent executed instrument between SMPD and UOP governing UOP's access to SMPD ALPR data. In response to prior PRA W012174-021826, SMPD stated that agency access authorization is "completed within the Flock platform" and that no MOU or sharing-configuration records were located in agency files. Per the Scope of records paragraph above, any such instrument held by Flock Safety on SMPD's behalf is an SMPD record under Gov. Code § 7920.530 and is within the scope of this request. (Responsive-See attached)

*5. Communications between SMPD personnel and UOP personnel concerning UOP's access to SMPD ALPR data, including the establishment, continuation, or termination of that access. (*A search for these materials was already conducted under PRA W012328-031226 and yielded no responsive records.)

Anticipated exemption issues:

** Civil Code § 1798.90.55(b) (via Gov. Code § 7927.705). The statute's sharing restriction operates against a public agency's disclosure of ALPR information to non-public entities. The SMPD-to-UOP component of the records requested here is information SMPD already disclosed to such an entity. Information UOP provided to SMPD does not implicate that provision's sharing restriction.*

** Gov. Code § 7923.600 (investigation records). § 7923.600 exempts records of complaints to, or investigations conducted by, a state or local police agency, and investigatory files compiled by such an agency. Two features of the present situation sit outside that scope: (a) the records requested are not investigative files compiled for a specific SMPD investigation, but bulk ALPR data SMPD made broadly accessible to UOP for undefined use; and (b) any investigative use of that data by UOP is an investigation by a private institution — UOP is not a state or local police agency within § 7923.600's text.*

** Cal. Const. Art. I § 1 / third-party privacy. If plate data implicating third-party privacy appears in the produced records, the appropriate redaction baseline is the one SMPD applied in disclosing that data to UOP. Whatever redactions SMPD applied (or did not apply) in that disclosure reflect SMPD's operative privacy judgment on that data.*

** Segregability (§ 7922.525(b)). Items 3 through 5 (scope documentation, agreements, communications) concern the fact and terms of the sharing arrangement rather than underlying plate data, and should be producible with minimal or no redaction regardless of how Items 1 and 2 are handled.*

If any portion is denied, please:

1. provide specific exemption citations per Gov. Code § 7922.540;
2. identify the withheld record type and volume;
3. indicate whether the denial rests on a claim that the records are held by Flock Safety rather than SMPD; and
4. if the denial invokes Civil Code § 1798.90.55(b) or any other rationale treating the records as protected "ALPR information" restricted from disclosure to non-public entities, state whether SMPD considers its prior disclosure of the same records to UOP — a non-public institution — to have been lawful under that provision, and identify the legal authority supporting that position.

Thank you.

We have made a good faith and diligent effort to complete your request, in which responsive records have been collected. These records are available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request **W012570-041926** closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/19/2026 11:17:33 PM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 4/19/2026 and given the reference number **W012570-041926** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.**

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Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 4/19/2026 11:17:19 PM, Brian C wrote:

Request Created on Public Portal